



Bill Number: S.B. 1168

Bolick Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Adds duplicated ballots, test ballots, ballots used for logic and accuracy testing and replacement early ballots to the list of categories that election officials must maintain specified counts for.
2. Requires the prescribed ballot counts to be posted online not later than 48 hours after a county board of supervisors transmits the county canvass to the Secretary of State.
3. Requires only an officer in charge of elections, rather than a county recorder, to maintain prescribed ballot counts and post such counts on the appropriate websites.

BOLICK FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1168
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 16-602, Arizona Revised Statutes, is amended to
3 read:

4 16-602. Tabulation; designated margin; hand counts; vote
5 count verification committee

6 A. For any primary, special or general election in which the votes
7 are cast:

8 1. On an electronic voting machine or tabulator, the election judge
9 shall compare the number of votes cast as indicated on the machine or
10 tabulator with the number of votes cast as indicated on the poll list and
11 the number of provisional ballots cast and that information shall be noted
12 in a written report prepared and submitted to the officer in charge of
13 elections along with other tally reports.

14 2. WITHOUT REGARD TO THE SYSTEM OR METHOD THAT IS USED TO PRODUCE
15 OR TABULATE BALLOTS, THE ~~[COUNTY RECORDER OR OTHER]~~ OFFICER IN CHARGE OF
16 ELECTIONS SHALL MAINTAIN A COUNT OF THE NUMBER OF PHYSICAL BALLOTS THAT
17 ARE PRINTED AND THE NUMBER OF BALLOTS THAT ARE OTHERWISE GENERATED IN THE
18 FOLLOWING CATEGORIES, INCLUDING THE AMOUNT OF ANY OVERLAP IN THOSE
19 CATEGORIES:

20 (a) EARLY BALLOTS.

21 (b) REGULAR BALLOTS.

22 (c) PROVISIONAL BALLOTS.

23 (d) FEDERAL-ONLY BALLOTS.

24 [(e) DUPLICATED BALLOTS.]

25 [(f) TEST BALLOTS.]

26 [(g) BALLOTS USED AS PRESCRIBED BY SECTION 16-449.]

27 [(h) REPLACEMENT EARLY BALLOTS AS REPORTED TO THE OFFICER IN CHARGE
28 OF ELECTIONS BY THE COUNTY RECORDER.]

1 ~~[(e)] [(i)]~~ BALLOTS ~~[THAT ARE]~~ GENERATED IN AN ELECTRONIC FORM
2 ~~[AND]~~ THAT ~~[\$]~~~~ARE~~ ITEMIZED BY THE CATEGORIES PRESCRIBED IN THIS
3 PARAGRAPH.

4 3. ~~[NOT LATER THAN FORTY-EIGHT HOURS AFTER THE COUNTY BOARD OF~~
5 ~~SUPERVISORS TRANSMITS THE COUNTY CANVASS TO THE SECRETARY OF STATE.]~~ THE
6 ~~[COUNTY RECORDER OR OTHER]~~ OFFICER IN CHARGE OF ELECTIONS SHALL POST THE
7 INFORMATION PRESCRIBED BY PARAGRAPH 2 OF THIS SUBSECTION ON THE WEBSITE OF
8 THE ~~[COUNTY RECORDER OR OTHER]~~ OFFICER IN CHARGE OF ELECTIONS AND SHALL
9 PROVIDE THAT INFORMATION TO THE SECRETARY OF STATE. THE SECRETARY OF
10 STATE SHALL POST EACH COUNTY'S INFORMATION ON THE SECRETARY OF STATE'S
11 WEBSITE.

12 B. For each countywide primary, special, general and presidential
13 preference election, the county officer in charge of the election shall
14 conduct a hand count at one or more secure facilities. The hand count
15 shall be conducted as prescribed by this section and in accordance with
16 hand count procedures established by the secretary of state in the
17 official instructions and procedures manual adopted pursuant to section
18 16-452. The hand count is not subject to the live video requirements of
19 section 16-621, subsection D, but the party representatives who are
20 observing the hand count may bring their own video cameras in order to
21 record the hand count. The recording shall not interfere with the conduct
22 of the hand count and the officer in charge of the election may prohibit
23 from recording or remove from the facility persons who are taking actions
24 to disrupt the count. The sole act of recording the hand count does not
25 constitute sufficient grounds for the officer in charge of the election to
26 prohibit observers from recording or to remove them from the facility.
27 The hand count shall be conducted in the following order:

28 1. At least two percent of the precincts in that county, or two
29 precincts, whichever is greater, shall be selected at random from a pool
30 consisting of every precinct in that county. The county political party
31 chairperson for each political party that is entitled to continued
32 representation on the state ballot or the chairperson's designee shall
33 conduct the selection of the precincts to be hand counted. The precincts
34 shall be selected by lot without the use of a computer, and the order of
35 selection by the county political party chairpersons shall also be by
36 lot. The selection of the precincts shall not begin until all ballots
37 voted in the precinct polling places have been delivered to the central
38 counting center. The unofficial vote totals from all precincts shall be
39 made public before selecting the precincts to be hand counted. Only the
40 ballots cast in the polling places and ballots from direct recording
41 electronic machines shall be included in the hand counts conducted
42 pursuant to this section. Provisional ballots, conditional provisional
43 ballots and write-in votes shall not be included in the hand counts and
44 the early ballots shall be grouped separately by the officer in charge of
45 elections for purposes of a separate manual audit pursuant to subsection F
46 of this section.

1 2. The races to be counted on the ballots from the precincts that
2 were selected pursuant to paragraph 1 of this subsection for each primary,
3 special and general election shall include up to five contested races.
4 After the county recorder or other officer in charge of elections
5 separates the primary ballots by political party, the races to be counted
6 shall be determined by selecting by lot without the use of a computer from
7 those ballots as follows:

8 (a) For a general election, one statewide ballot measure, unless
9 there are no measures on the ballot.

10 (b) One contested statewide race for statewide office.

11 (c) One contested race for federal office, either United States
12 senate or United States house of representatives. If the United States
13 house of representatives race is selected, the names of the candidates may
14 vary among the sampled precincts.

15 (d) One contested race for state legislative office, either state
16 house of representatives or state senate. In either case, the names of
17 the candidates may vary among the sampled precincts.

18 (e) If there are not a sufficient number of contested federal,
19 statewide or legislative races or ballot measures, one contested county
20 race.

21 (f) If there are fewer than four contested races resulting from the
22 selections made pursuant to subdivisions (a) through (e) of this paragraph
23 and if there are additional contested federal, statewide, legislative or
24 county races or ballot measures, additional contested races shall be
25 selected by lot not using a computer until four races have been selected
26 or until no additional contested federal, statewide, legislative or county
27 races or ballot measures are available for selection.

28 (g) If there are not a sufficient number of contested races
29 resulting from the selections made pursuant to subdivisions (a) through
30 (f) of this paragraph, additional uncontested races shall be selected by
31 lot not using a computer until up to five races have been selected.

32 (h) If there are no contested races as prescribed by this
33 paragraph, a hand count shall not be conducted for that precinct for that
34 election.

35 3. For the presidential preference election, select by lot two
36 percent of the polling places designated and used pursuant to section
37 16-248 and perform the hand count of those ballots.

38 4. For the purposes of this section, a write-in candidacy in a race
39 does not constitute a contested race.

40 5. In elections in which there are candidates for president, the
41 presidential race shall be added to the four categories of hand counted
42 races.

1 6. Each county chairperson of a political party that is entitled to
2 continued representation on the state ballot or the chairperson's designee
3 shall select by lot the individual races to be hand counted pursuant to
4 this section.

5 7. Political party designees who are selected pursuant to this
6 paragraph shall perform the hand count under the supervision of the county
7 officer in charge of elections. The county officer in charge of elections
8 shall provide compensation for those selected to perform the hand count,
9 not to include travel, meal or lodging expenses. The hand count shall not
10 proceed unless the political parties provide the officer in charge of
11 elections in writing a sufficient number of persons pursuant to this
12 paragraph by 5:00 p.m. on the Thursday preceding the election and a
13 sufficient number of persons prescribed by this paragraph arrive to
14 perform the hand count. If a political party designee fails to appear for
15 the hand count audit, the county chairperson or the state party
16 chairperson of each political party may select persons from any political
17 party if the selection of persons who perform the hand count complies with
18 subdivision (e) of this paragraph and does not delay the hand count.
19 Political party designees shall be selected to perform the hand count as
20 follows:

21 (a) The county chairperson of each political party shall designate
22 and provide to both the county officer in charge of elections and the
23 state party chairperson the number of hand count board members as
24 designated by the county officer in charge of elections. If the county
25 party chairperson fails to designate a sufficient number of hand count
26 board workers, the state party chairperson shall designate qualified
27 electors to be hand count board workers. If the county party chairpersons
28 and the state party chairpersons fail to designate a sufficient number of
29 hand count board workers, the highest-ranking official holding a statewide
30 office of each political party shall designate qualified electors to be
31 hand count board workers. For the purposes of this subdivision, the
32 ranking of officials holding statewide office shall be governor, secretary
33 of state, attorney general, state treasurer, superintendent of public
34 instruction, corporation commissioners in order of seniority, mine
35 inspector, senate majority and minority leaders and house of
36 representatives majority and minority leaders.

37 (b) The political parties shall provide to the county officer in
38 charge of elections in writing the names of those persons intending to
39 participate in the hand count at the audited precincts not later than
40 5:00 p.m. on the second Tuesday preceding the election.

41 (c) If the total number of hand count board workers provided by all
42 parties is less than the number designated by the county officer in charge
43 of elections, the county officer in charge of elections shall notify the
44 parties of the shortage not later than 9:00 a.m. on the second Wednesday
45 preceding the election and the political parties have until 9:00 a.m. on
46 the second Thursday preceding the election to provide the county officer

1 in charge of elections with an additional list of qualified electors and
2 alternates who are willing to participate in the hand count.

3 (d) The county officer in charge of elections shall distribute the
4 list provided pursuant to subdivision (c) of this paragraph to the county
5 chairperson and state chairperson of each recognized political party in
6 the county and state not later than 5:00 p.m. on the second Friday
7 preceding the election.

8 (e) The selection of persons to perform the hand count shall ensure
9 that not more than seventy-five percent of the persons conducting the hand
10 count are members of the same political party.

11 (f) The county recorder or county officer in charge of elections
12 may prohibit persons from participating in the hand count if the persons
13 are taking actions to disrupt the count or are unable to perform the
14 duties as assigned.

15 8. If a political party is not represented by a designated
16 chairperson within a county, the state chairperson for that political
17 party, or a person designated by the state chairperson, may perform the
18 actions required by the county chairperson as specified in this section.

19 C. If the randomly selected races result in a difference in any
20 race that is less than the designated margin when compared to the
21 electronic tabulation of those same ballots, the results of the electronic
22 tabulation constitute the official count for that race. If the randomly
23 selected races result in a difference in any race that is equal to or
24 greater than the designated margin when compared to the electronic
25 tabulation of those same ballots, a second hand count of those same
26 ballots and races shall be performed. If the second hand count results in
27 a difference in any race that is less than the designated margin when
28 compared to the electronic tabulation for those same ballots, the
29 electronic tabulation constitutes the official count for that race. If
30 the second hand count results in a difference in any race that is equal to
31 or greater than the designated margin when compared to the electronic
32 tabulation for those same ballots, the hand count shall be expanded to
33 include a total of twice the original number of randomly selected
34 precincts. Those additional precincts shall be selected by lot without
35 the use of a computer.

36 D. In any expanded count of randomly selected precincts, if the
37 randomly selected precinct hand counts result in a difference in any race
38 that is equal to or greater than the designated margin when compared to
39 the electronic tabulation of those same ballots, the final hand count
40 shall be extended to include the entire jurisdiction for that race. If
41 the jurisdictional boundary for that race would include any portion of
42 more than one county, the final hand count shall not be extended into the
43 precincts of that race that are outside of the county that is conducting
44 the expanded hand count. If the expanded hand count results in a
45 difference in that race that is less than the designated margin when
46 compared to the electronic tabulation of those same ballots, the
47 electronic tabulation constitutes the official count for that race.

1 E. If a final hand count is performed for an entire jurisdiction
2 for a race, the final hand count shall be repeated for that race until a
3 hand count for that race for the entire jurisdiction results in a count
4 that is identical to one other hand count for that race for the entire
5 jurisdiction and that hand count constitutes the official count for that
6 race.

7 F. After the electronic tabulation of early ballots and at one or
8 more times selected by the chairperson of the political parties entitled
9 to continued representation on the ballot or the chairperson's designee,
10 the chairpersons or the chairpersons' designees shall randomly select one
11 or more batches of early ballots that have been tabulated to include at
12 least one batch from each machine used for tabulating early ballots and
13 those ballots shall be securely sequestered by the county recorder or
14 officer in charge of elections along with their unofficial tally reports
15 for a postelection manual audit. The chairpersons or the chairpersons'
16 designees shall randomly select from those sequestered early ballots a
17 number equal to one percent of the total number of early ballots cast or
18 five thousand early ballots, whichever is less. From those randomly
19 selected early ballots, the county officer in charge of elections shall
20 conduct a manual audit of the same races that are being hand counted
21 pursuant to subsection B of this section. If the manual audit of the
22 early ballots results in a difference in any race that is equal to or
23 greater than the designated margin when compared to the electronically
24 tabulated results for those same early ballots, the manual audit shall be
25 repeated for those same early ballots. If the second manual audit results
26 in a difference in that race that is equal to or greater than the
27 designated margin when compared to the electronically tabulated results
28 for those same early ballots, the manual audit shall be expanded only for
29 that race to a number of additional early ballots equal to one percent of
30 the total early ballots cast or an additional five thousand ballots,
31 whichever is less, to be randomly selected from the batch or batches of
32 sequestered early ballots. If the expanded early ballot manual audit
33 results in a difference for that race that is equal to or greater than the
34 designated margin when compared to any of the earlier manual counts for
35 that race, the manual counts shall be repeated for that race until a
36 manual count results in a difference in that race that is less than the
37 designated margin. If at any point in the manual audit of early ballots
38 the difference between any manual count of early ballots is less than the
39 designated margin when compared to the electronic tabulation of those
40 ballots, the electronic tabulation shall be included in the canvass and no
41 further manual audit of the early ballots shall be conducted.

42 G. During any hand count of early ballots, the county officer in
43 charge of elections and election board workers shall attempt to determine
44 the intent of the voter in casting the ballot.

1 H. Notwithstanding any other law, the county officer in charge of
2 elections shall retain custody of the ballots for purposes of performing
3 any required hand counts and the officer shall provide for security for
4 those ballots.

5 I. The hand counts prescribed by this section shall begin within
6 twenty-four hours after the closing of the polls and shall be completed
7 before the canvassing of the election for that county. The county shall
8 make available on the county's website the results of those hand counts
9 and shall provide the results to the secretary of state, who shall make
10 those results publicly available on the secretary of state's website.

11 J. For any county in which a hand count has been expanded to all
12 precincts in the jurisdiction, the secretary of state shall make available
13 the escrowed source code for that county to the superior court. The
14 superior court shall appoint a special master to review the computer
15 software. The special master shall have expertise in software
16 engineering, shall not be affiliated with an election software vendor nor
17 with a candidate, shall sign and be bound by a nondisclosure agreement
18 regarding the source code itself and shall issue a public report to the
19 court and to the secretary of state regarding the special master's
20 findings on the reasons for the discrepancies. The secretary of state
21 shall consider the reports for purposes of reviewing the certification of
22 that equipment and software for use in this state.

23 K. The vote count verification committee is established in the
24 office of the secretary of state and all of the following apply:

25 1. ~~At least thirty days before the 2006 primary election,~~ The
26 secretary of state shall appoint seven persons to the committee, not more
27 than three of whom are members of the same political party.

28 2. Members of the committee shall have expertise in any two or more
29 of the areas of advanced mathematics, statistics, random selection
30 methods, systems operations or voting systems.

31 3. A person is not eligible to be a committee member if that person
32 has been affiliated with or received any income in the preceding five
33 years from any person or entity that provides election equipment or
34 services in this state.

35 4. The vote count verification committee shall meet and establish
36 one or more designated margins to be used in reviewing the hand counting
37 of votes as required pursuant to this section. The committee shall review
38 and consider revising the designated margins every two years for use in
39 the applicable elections. The committee shall provide the designated
40 margins to the secretary of state at least ten days before the primary
41 election and at least ten days before the general election, and the
42 secretary of state shall make that information publicly available on the
43 secretary of state's website.

Senate Amendments to S.B. 1168

1 5. Members of the vote count verification committee are not
2 eligible to receive compensation but are eligible for reimbursement of
3 expenses pursuant to title 38, chapter 4, article 2. The committee is a
4 public body and its meetings are subject to title 38, chapter 3, article
5 3.1 and its reports and records are subject to title 39, chapter 1.

6 Enroll and engross to conform

7 Amend title to conform

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